

How to handle illegal interview questions and know your rights as a candidate — Action Checklist

PRINT THIS PAGE AND KEEP IT SOMEWHERE VISIBLE

KNOW YOUR LEGAL RIGHTS

- ☐ **Know Your Legal Rights:** Identify which federal law applies to your situation before deciding how to respond to a potentially illegal question during your interview.
- ☐ **Know Your Legal Rights:** Memorize the five protected categories under Title VII—race, color, religion, sex, and national origin—so you can recognize when questions target these areas.
- ☐ **Know Your Legal Rights:** Understand that under the ADA, interviewers can only ask about your ability to perform specific job duties, not about the nature or severity of any disability you may have.
- ☐ **Know Your Legal Rights:** Recognize that the ADEA protects workers 40 and older, which means questions about your graduation year or career length are potential violations of federal law.

RESPOND IN THE MOMENT

- ☐ **Respond In the Moment:** Use a deflection phrase like "I'd prefer to focus on my qualifications for this role" when an interviewer asks something that makes you uncomfortable.
- ☐ **Respond In the Moment:** Pause before answering any question that feels wrong—taking even five seconds gives you time to decide whether the question crosses a legal line.
- ☐ **Respond In the Moment:** Ask the interviewer how the question relates to the job requirements when you're unsure whether something is appropriate, which redirects the conversation without accusing them.
- ☐ **Respond In the Moment:** Decline to answer if the question is clearly about a protected characteristic, even if it feels awkward—your legal right to refuse is firmly established.

PROTECT YOURSELF AFTER

- ☐ **Protect Yourself After:** Write down the exact questions asked, the interviewer's exact words, and the overall context of the conversation while everything is still fresh in your memory.

 - ☐ **Protect Yourself After:** File a formal complaint with the EEOC within 180 days of the incident if you believe your rights were violated—timing is critical to preserving your case.

 - ☐ **Protect Yourself After:** Evaluate whether the rejection you received might be connected to your refusal to answer illegal questions by reviewing the timeline and any communications you received.

 - ☐ **Protect Yourself After:** Consult an employment attorney about potential legal remedies if you have strong evidence that discrimination occurred during your interview process.
-

Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.